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Case Number: 26PSCV00758 Hearing Date: July 22, 2026 Dept: 6

CASE

NAME: Alexander

Parra v. Durfee Investments LLC, et al.

Durfee

Investments LLC's Demurrer to Plaintiff's Complaint

TENTATIVE

RULING

The Court SUSTAINS Defendant Durfee Investments LLC's Demurrer to the Second and Third Causes of Action of Plaintiff's Complaint without leave to amend. The Court orders Durfee Investments LLC to file an Answer to the remaining causes of action within ten calendar days of this order.

Defendant Durfee Investments LLC is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a dog bite case. On March 3, 2026, plaintiffs Alexander Parra (Plaintiff), a minor, by and through his Guardian Ad Litem, Valerie Di Ana Parra, filed this action against defendants Durfee Investments LLC (Durfee), Raymond Chan (Raymond), Cathy Chan (Cathy)[1] (collectively, Defendants), and Does 1 through 50, alleging causes of action for negligence, statutory liability – dog bite statute, and strict liability. On July 6, 2026, Plaintiff filed an amendment to the Complaint, substituting

Monica Fuentes in place of Doe 1.

On June 16, 2026, cross-complainants Raymond Chan and Cathy Chan (collectively, Cross-Complainants) filed a cross-complaint against cross-defendants Josue Manuel Cordon, Monica Fuentes (collectively, Cross-Defendants), and Roes 1 through 10, alleging causes of action for total indemnity, declaratory relief – implied partial indemnity, declaratory relief – equitable apportionment, and express indemnity.

On June 12, 2026, Durfee demurred to Plaintiff's Complaint. On July 9, 2026, Plaintiff opposed the Demurrer. On July 13, 2026, Durfee replied to Plaintiff's Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

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demurrer can be utilized where the “face of the complaint” itself is incomplete

or discloses some defense that would bar recovery. (Guardian North Bay, Inc. v. Superior Court (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94; see also Barnett v. Fireman’s Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Plaintiff’s

Opposition incorrectly attributes the following quotation “It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the defect can be cured by amendment” to Blank v. Kirwan (1985) 39 Cal.3d 311, 318. (Opp., 4:8-10.) The quotation is not found in that case. (See generally, Blank v. Kirwan, supra, 39 Cal.3d 311.) But, the proposition proffered in that quotation is correct. (See id. at p. 318 [“And when it is sustained without leave to amend, we decide whether there is a reasonable possibility that the defect can be cured by amendment: if it can be, the trial court has abused its discretion and we reverse; if not, there has been no abuse of discretion and we affirm. [Citations]”].) The Court admonishes Plaintiff’s counsel to be more cautious going forward when quoting and citing legal authorities.

Durfee’s

Reply contends that Plaintiff’s Opposition was untimely. That is incorrect. The opposition deadline was July 9, 2026, which is the date Plaintiff filed the Opposition. (Code Civ. Proc., § 1005, subd. (a).)

DISCUSSION

Meet and Confer

The Court finds Durfee's efforts to meet and confer before bringing this Demurrer sufficient. (Shaw Decl., ¶ 6; Code Civ. Proc., § 430.41, subd. (a).)

Analysis

Second Cause of Action for Statutory Liability-Dog Bite Statute and Third Cause of Action for Strict Liability

Pursuant to Civil Code section 3342, "[t]he owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness." (Civ. Code, § 3342, subd. (a).)

To state cause of action for common law strict liability, the plaintiff must allege facts demonstrating that "the owner of a domestic animal that bites or injures another person knew or had reason to know of the animal's vicious propensities. [Citations.] If [defendant] knew or should have known of his dog's vicious propensities and failed to inform [plaintiff] of such facts, he could be found to have exposed [plaintiff] to an unknown risk and thereby be held strictly liable at common law for her injuries." (*Priebe v. Nelson* (2006) 39 Cal.4th 1112, 1115 (*Priebe*), italics in original.)

Defendant Durfee demurs to the Second Cause of Action for statutory liability under the dog bite statute (Civil Code section 3342) and the Third Cause of Action for strict liability on the grounds that both causes of action fail to state facts sufficient to constitute a cause of action against Durfee and on the grounds that they are uncertain. Durfee contends both causes of action apply only to the owner of the dog and that the Complaint does not allege any facts demonstrating that Durfee owned the subject dog. Durfee argues that Plaintiff's own pleading is dispositive, in that paragraph 4 alleges Durfee was merely the title holder of the property, and paragraph 8 alleges that only Defendants Raymond Chan and Cathy Chan owned the dog. Durfee contends that Civil Code section 3342 imposes liability exclusively on the owner of the dog and does not extend to a property owner who has no ownership interest in or control over the animal, and that strict liability likewise attaches only to the owner or keeper of the animal. Because the Complaint pleads no facts establishing that Durfee

owned, kept, or controlled the dog, Durfee argues that both causes of action fail as a matter of law and that this defect cannot be cured by amendment, so the Demurrer should be sustained without leave to amend.

In opposition, Plaintiff disputes the request that the demurrer be sustained without leave to amend, arguing that California law favors resolution of actions on their merits and requires courts to exercise great liberality in permitting amendment of pleadings. Plaintiff contends that Durfee has not met its burden of demonstrating that amendment would be futile, and that leave to amend should be granted where there is a reasonable possibility the defect can be cured. Plaintiff asserts that the action remains in its earliest stages, that no discovery has been conducted, that no prior demurrers have been adjudicated, and that Plaintiff has not previously amended by leave of court. Plaintiff further argues that his recent amendment substituting a previously unidentified Doe defendant demonstrates that factual investigation concerning the identities, relationships, and responsibilities of the parties, the subject property, and the dog remains ongoing.

In reply, Durfee argues that the Opposition does not and cannot cure the fundamental deficiency of the Complaint, namely that Durfee is merely the title holder of the subject property and has never been the owner, keeper, harborer, or controller of the subject dog. Durfee contends that Plaintiff effectively concedes the Complaint is deficient by seeking leave to amend, and that Plaintiff does not argue the Complaint as currently pleaded states a viable claim. Durfee maintains that the request for leave to amend should be denied because the relevant facts are not the product of discovery but are already known to and disclosed by Plaintiff, namely that Plaintiff attended the birthday party and knew who hosted it, and Plaintiff's counsel has possessed since before filing suit an animal bite Report identifying Monica Fuentes as the dog's owner, whom Plaintiff has now named as a defendant in place of Doe 1. Durfee argues that mere property ownership does not establish liability under the dog bite statute or strict liability, that the "ongoing investigation" rationale is inapplicable where Plaintiff already possesses the facts negating the proposed amendment, and that amendment would therefore be futile.

The Court finds the Complaint fails to allege sufficient facts to state causes of action under either Civil Code section 3342 or strict liability against Durfee. Ownership is a prerequisite to liability under either cause of action. (See Civ. Code, § 3342, subd. (a); Priebe, supra, 39 Cal.4th at p. 1115.) The Complaint fails to allege sufficient facts showing

that Durfee owns the dog who allegedly attacked and bit Plaintiff. The Complaint specifically alleges that Defendants Raymond and Cathy own the dog. (Compl., ¶¶ 1, 8-9.) The Complaint also alleges Doe Defendants being owners, which would include Defendant Monica Fuentes as Doe 1. (Compl., ¶¶ 6, 8.) The Court does note that paragraphs 15, 27, and 34 of the Complaint allege Durfee as being an owner of the dog, but the Court finds these allegations to be contradictory general allegations, whereas the allegations against Raymond, Cathy, and the Doe Defendants are specific and therefore take precedence. (Compl., ¶ 15; B & P Dev. Corp. v. City of Saratoga (1986) 185 Cal.App.3d 949, 953 [on a demurrer, "[s]pecific factual allegations modify and limit inconsistent general statements. [Citations.].")

Moreover, Plaintiff's Opposition tacitly concedes that these causes of action are defective as to Durfee. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) Plaintiff also made no offer of proof showing that Plaintiff can cure these pleading defects by amendment.

Based on the foregoing, the Court SUSTAINS Durfee's Demurrer to the Second and Third Causes of Action without leave to amend.

CONCLUSION

The Court SUSTAINS Defendant Durfee Investments LLC's Demurrer to the Second and Third Causes of Action of Plaintiff's Complaint without leave to amend. The Court orders Durfee Investments LLC to file an Answer to the remaining causes of action within ten calendar days of this order.

Defendant Durfee Investments LLC is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court refers to Raymond and Cathy by their first names only to avoid confusion and intends no disrespect.